

Q.8c (15 marks): While there are commonalities in the recognition of marriage, the idea of a universal definitio...

LevelUp IAS

anything in this Art

- 8.c) While there are commonalities in the recognition of marriage as a social institution, the idea of a universal definition of marriage poses several problems. Comment. (15 marks)

According to 6th edition of Notes and Queries in Anthropology (1951), marriage is a union between a man and a woman such that children born to women are legitimate offsprings of both parents.

Commonalities in recognising marriage as a social phenomenon

Marriage serves the function of establishing legal father / mother of a child

It gives access to husband / wife to wife's / husband's sexual services, labour services, and property.

Marriage serves an important need of reducing sexual competition and prevent chaos in society as humans lack sexual dimorphism and females can mate all throughout year.

Marriage helps in forming bonds, basis for family to nurture child who is born with underdeveloped brain.

Thus, marriage is universal as seen by functions and needs it performs.

Problems with universal definition of marriage

The marriage though universal phenomenon, there are issues still to have a universal definition.

→ The definition of notes and queries has following issues -

- 1) Union b/w man and woman - various exceptions to this.
 - a) Polygamy
 - Polygyny
 - Paternal - ^{7-dos} ~~Khans of Jaisalmer~~
 - Non-paternal - Nayars of Malabar
 - Polygyny - (i.e) Muslims.
 - Polygyny - Khans of Jaisalmer
 - b) woman-woman marriage among Nairs, Zulus
 - c) Ghost marriage among British Colonials.
- 2) Legitimate offspring - Legitimacy stems from law
which involves use of physical force or its possibility but Law as an institution is ascertaining simple societies.

Kathleen Gough in "Nations and the Universal definition of marriage" (1959) gave a working definition of marriage that can be considered universal.

"A union b/w woman and one or more ^{other persons} ~~such~~ ^{circumstances} that child born to woman under ~~such~~ ^{not} prohibited by rules of relationship is accorded full-birth status rights as per society or social ~~status~~ ^{status}"

Overall well written answer.

Thus, Gough's definition covers all marriages.
only exception is male-male marriage but till it is socially recognised across world, Gough's definition can be considered universal.

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